

PASSED

CHICKASAW TRIBAL LEGISLATURE

Permanent Resolution Number 34-001

**Amendments to Title 16, Chapter 1 Section 16-101.3 of the Chickasaw Nation Code
(Tie Vote)**

WHEREAS, in accordance with Article VII, Sections 4 and 7 of the Constitution of the Chickasaw Nation, the Chickasaw Tribal Legislature shall enact rules and regulations pertaining to the Chickasaw Nation, and shall make decisions pertaining to the acquisition, leasing, disposition and management of real property, subject to federal law, and

WHEREAS, in accordance with Article XI, Section 1 of the Constitution of the Chickasaw Nation, the Governor shall perform all duties appertaining to the office of Chief Executive. He shall sign official papers on behalf of the Nation, and

WHEREAS, the Chickasaw Tribal Legislature has previously enacted rules of the Legislature, and

WHEREAS, the Chickasaw Tribal Legislature desires to amend those rules.

NOW, THEREFORE, BE IT RESOLVED, that the Chickasaw Tribal Legislature hereby approves and adopts the following amendments to Title 16, Chapter 2 Section 16-101.3 of the Chickasaw Nation Code, all other sections and parts of sections to remain the same (additions are shown in red, deletions are stricken through):

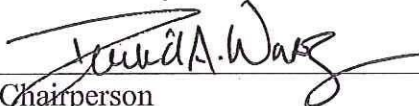
“SECTION 16-101.3

ORGANIZATION AND COMMITTEES.

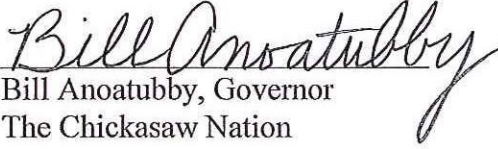
A. At its first Regular Session each **fiscal** year, the Legislature shall organize and elect officers from its members. Officers shall include a Chairperson and a Secretary. The Chairperson shall nominate a Recording Secretary and a Sergeant-at-arms for placement in office by and with the advice and consent of the Legislature. The Chairperson shall preside over all meetings of the Legislature.

B. Election of officers shall be by written ballot marked in secret and counted by the Recording Secretary and Legislative Counsel. In case of a tie in the election of officers, the Legislature shall continue voting until an officer is elected. If the Legislature is still tied after three (3) rounds of voting, Legislative Counsel, Sergeant at Arms or other neutral person shall flip a coin and let it fall to the floor. The choice of heads or tails shall be called prior to the flipping by a candidate chosen by the tied candidates. The coin flip shall be a final designation of the winning officer.”

Executed in regular session of the Chickasaw Tribal Legislature, meeting at Ada, Oklahoma, on November 18, 2016, by a vote of 10 ayes, 0 nays, 0 abstentions.


Chairperson
Chickasaw Tribal Legislature


Secretary
Chickasaw Tribal Legislature

Concur: 
Bill Anoatubby, Governor
The Chickasaw Nation

Date: NOV 18 2016

CHICKASAW TRIBAL LEGISLATURE
Permanent Resolution Number 34-001
Resolution Amending the Rules of the Legislature
(Tie Vote)

Explanation: This resolution adopts and approves amendments to Title 16, Chapter 1 Section 16-101.3 of the Chickasaw Nation Code. The amendments will provide guidance should the Legislature encounter a tie vote when electing officers at its first Session of each fiscal year.

Presented By: Legislative Committee